



UTM
UNIVERSITI TEKNOLOGI MALAYSIA

ULRS-1032

INTEGRITY AND ANTI-CORRUPTION COURSE

SECTION 14

CORRUPTION CASE STUDY REPORT

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1.0 INTRODUCTION

Based on the figures below, The Global Corruption Barometer for Asia 2020, covering 17 countries and involving 20,000 respondents, was released by Transparency International. The survey conducted in Malaysia during the period from July 2019 to June 2020 took place during a transition of power between two distinct governments [1]. The major highlights for Malaysia in this survey finds that 71% of Malaysians think that government corruption is a big problem and also show that 13% of public service users paid a bribe in the previous 12 months. The figures also provide The Corruption Perceptions Index which ranks all countries and regions in the world. It provides an annual overview of the relative corruption level. It shows that Malaysia ranks 61st out of 180 countries, with 47 out of 100 points.

Country data



Figure 1: Corruption Perceptions Index and Global Corruption Barometer of Malaysia

Source: Transparency International [2]

These revelations demonstrate that taking care of the issue of corruption is still an urgent task for Malaysia. This report has been a useful source of knowledge by the policy makers, advocacy groups, as well as the public, on why there is a need to continue with the fight against corruption, promote transparency and strengthen the anti-corruption initiatives in order to have an accountable and equal society.

The Malaysian Anti-Corruption Commission Act 2009 is the Malaysian laws which enacted to provide for the establishment of the Malaysian Anti-Corruption Commission, to make further and better provisions for the prevention of corruption and for matters necessary thereto and connected therewith [3]. The Malaysian Anti-Corruption Commission Act 2009, consists of 9 Parts containing 74 sections and 1 schedule (including no amendment).

Part I: Preliminary

Part II: The Malaysian Anti-Corruption Commission

Part III: Provisions on Advisory Board, Special Committee and Complaints Committee

Part IV: Offences and Penalties

Part V: Investigation, Search, Seizure and Arrest

Part VI: Evidence

Part VII: Prosecution and Trial of Offences

Part VIII: General

Part IX: Repeal and Saving

Schedule

1.1 BACKGROUND



Figure 2: Mohd Shariff bin Ahmad Pled Not Guilty during His Arraignment

Source: Berita Harian [4]

Mohd Shariff bin Ahmad has been implicated in a bribery case where he accepted a bribe of RM3,000.00 in cash from Muhammad Audi bin Musa. This bribe was intended to influence him in his capacity as a police corporal at the Criminal Investigation Division, Kulai District Police Headquarters. The purpose of the bribe was to close an investigation into the marijuana case involving Muhammad Audi bin Musa, which was being conducted by the Narcotics Division of the Kulai District Police Headquarters.

As a result of these actions, Mohd Shariff bin Ahmad has committed an offence under Section 16(a)(B) of the Malaysian Anti-Corruption Commission Act 2009. He is liable to be punished under Section 24 of the same Act, which includes a prison sentence of four years and a fine of RM20,000.00, or alternatively, six months' imprisonment [4].

1.2 CHRONOLOGY [4]

4 Disember 2017	Demanding a cash bribe of RM 10,000 to cover up a drug case.
11 February 2019	Pled not guilty during his arraignment before Sessions Court judge
11 March 2019	Date of re-mention of the case
22 Ogos 2023	Date of Penalty

2.0 LITERATURE REVIEW

Corruption is dishonest behaviour by those in positions of power. The person who abuses power may be an individual, or a member of an organisation such as an enterprise or governments. Corruption can include all kinds of behaviours, including bribery or improper gifts, double dealing and cheating investors [5].

The factors that actually cause corruption are separate into two aspects which are individual and organisation. The reasons for individuals are greed of money and desire, lack of moral personality or education, insufficient income that causes urgent necessities of life and the

consumption lifestyle. In addition, the organisational reasons are lack of exemplary leadership posture, the poor organisational culture, lack of proper accountability system in government agencies, weak management control systems, and a tendency to cover up corruption [6].

The war on corruption should take a multi-pronged strategy. Education is critical for individuals in organisations to become aware of and resist corruption. Anti money laundering training is one of those mandatory courses which develops awareness, creates a base for ethical practices and so on. Having in place a strong control framework and proper vetting procedures builds robust safeguards against corruption. In essence, accountability is reinforced with clear consequences for ethical violations and well-defined expectations. Preventative measures include regulatory frameworks with relevant codes of conduct, especially among the susceptible industries. Ensuring that reporting channels for corruption issues are open and secure is crucial, so that people from different hierarchies have confidence to report. Lastly there have to be specific measures put in place that should act as deterrents by imposing severe fines and criminal liabilities for the same corrupt behaviour. This is done so as to create more open systems within organisations [5].

When individuals or officials in positions of power exercise corruption it is referred to as bribery, fraud, or double dealing. While this might incur some financial implications, it goes beyond that as it touches on the social aspects of people in a community including their general welfare. The dishonesty destroys the basis of democracy with citizens' losing the confidence in their leaders and organisations. As former President Pratibha Patil rightly asserts, corruption is the enemy of development and good governance, necessitating united efforts from both the government and the public to eradicate this national threat.

3.0 OBJECTIVE

This study was conducted to achieve the following goals:

- I. Understanding the phenomenon of corruption among the public officers.
- II. Evaluating the level of students' comprehension regarding corruption.
- III. Explore factors, causes, effects and steps to address corruption issues in the society.

4.0 METHODOLOGY

Study was conducted by gathering information from websites such as Berita Harian, The Sun, the official MACC website, and others. From the analysis of these articles, chronology of a corruption case involving a former police corporal at the Criminal Investigation Division of the Kulai District Police Headquarters were able to be discerned. Additionally, the case related to marijuana, and the subsequent closure of the investigation involving Muhammad Audi bin Musa, which was being conducted by the Narcotics Division of the Kulai District Police Headquarters, were also examined.

A qualitative method was employed by conducting a survey through Google Forms and UTM students were exclusively targeted as respondents. Surveys serve as a widely utilised instrument across various fields to gather data on a particular topic, eliciting individuals' thoughts, opinions, suggestions, and more. Six questions were formulated to assess students' understanding of corruption. Through this method, responses from the participants were obtained, constituting the research data presented below.

I. Gender-Based Study

There were 22 respondents, comprising 10 females and 12 males among UTM students.

Gender
22 responses

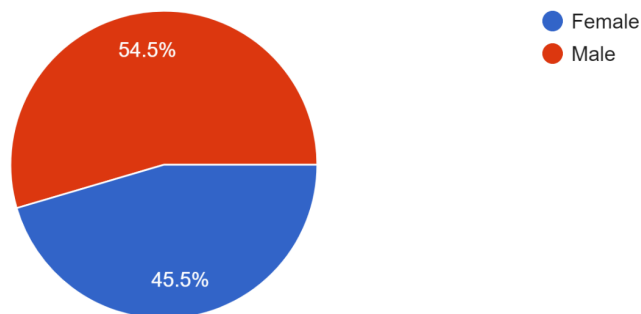


Chart 1: Gender of Respondents

II. Race-Based Study

There were 22 respondents, comprising 18 mandarin students, 2 malay students, one indian students and one yemen students.

Race
22 responses

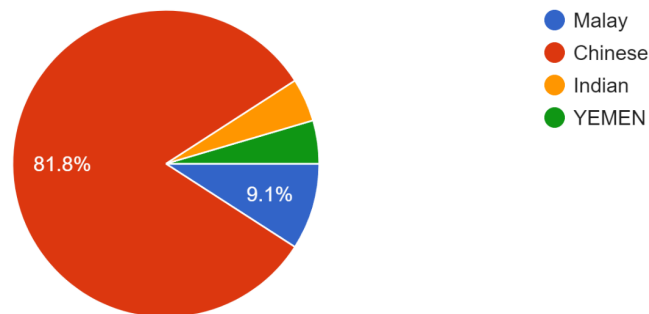


Chart 2: Race of Respondents

III. Age-Based Study

All respondents are aged between 19 and 21 years old.

Age Range
22 responses

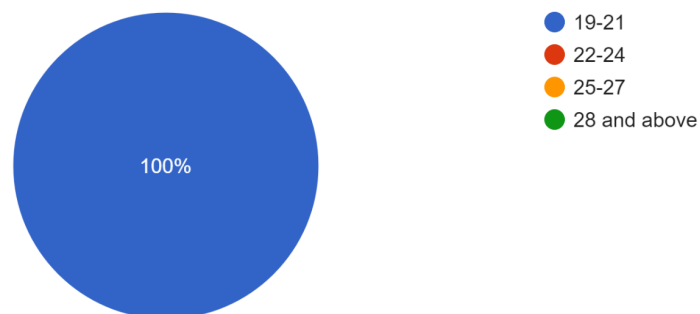


Chart 3: Age Range of Respondents

IV. Faculty-Based Study

There were 22 respondents, comprising 11 students from the Faculty of Computing, students, 10 students from Faculty of Chemistry and Energy and one student from Faculty of Mechanical Engineering and Technology.

Faculty
22 responses

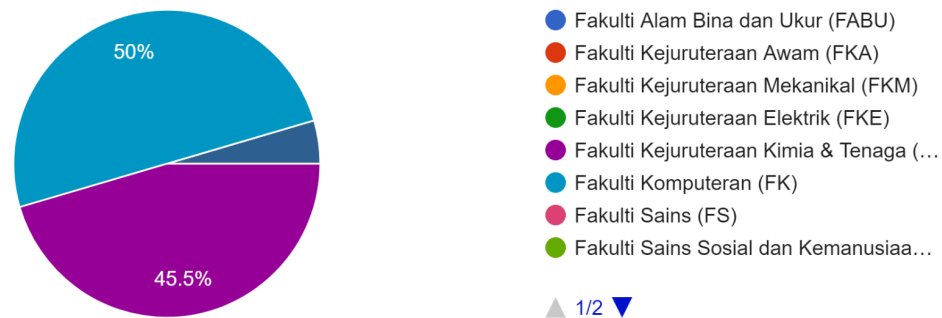


Chart 4: Faculty of Respondents

5.0 OBSERVATION AND DISCUSSION

This section delineates the analysis of data accumulated through a survey conducted via Google Forms. The dataset comprising responses from 22 participants, has been meticulously organised to construct percentage charts and frequency scores for each response.

I. Have you personally witnessed or been aware of instances where bribery played a role in expediting the closure of a case?

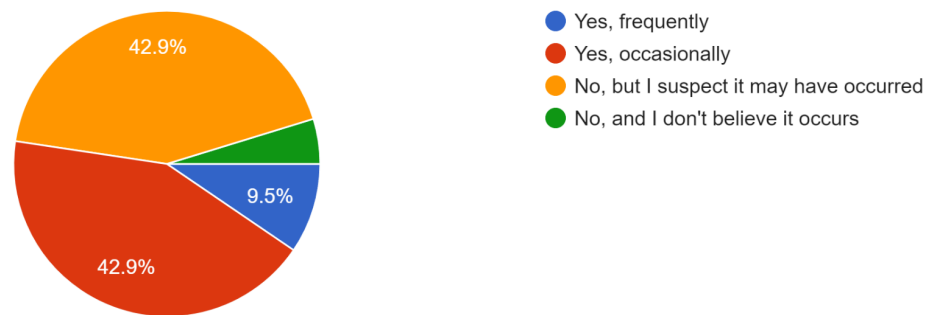


Chart 5: Awareness on Role of Bribery in Case Closure

A total of 42.9%, or 9 individuals out of the total of 21, have agreed that they are aware of instances where bribery played a role in expediting the closure of a case. Bribery may play a role in expediting case closure for several reasons, though it is essential to emphasise that bribery is illegal, unethical, and undermines the integrity of the legal system.

The act of offering bribes to decision-makers within the legal system, including judges or law enforcement officials, may constitute an endeavour to exert influence on their decisions in favour of the party providing the bribe. Those involved in a case might resort to bribery to avoid legal consequences or unfavourable outcomes. By offering bribes, they may hope to secure a more lenient judgement or even have the case dismissed entirely [7].

II. In your opinion, what are the primary motivations behind accepting bribes to close a case?

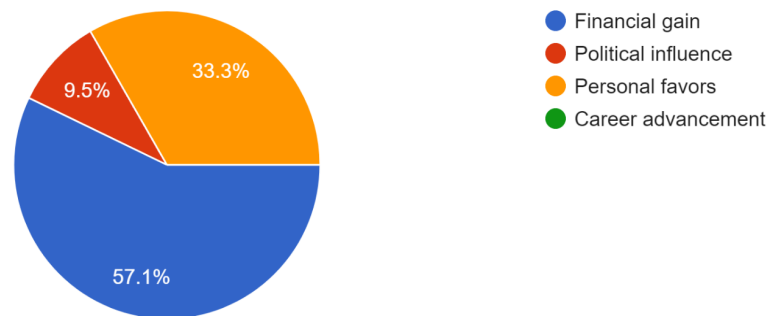


Chart 6: Primary Motivation behind Accepting Bribes to Close a Case

A total of 57.1%, or 12 individuals out of the total of 21, have concurred that financial gain constitutes the primary motivation for accepting bribes to conclude a case. Several factors underscore the centrality of financial incentives for individuals within the legal system. Monetary temptation stands out as a pivotal factor compelling individuals to accept bribes, even at the potential cost of severe consequences such as death or life imprisonment. The act of accepting bribes offers an immediate and substantial financial reward, leading individuals to succumb to the allure of financial gain, particularly when faced with personal financial challenges or confronted with a significant offered amount.

Furthermore, some individuals are propelled by inherent greed and opportunism. The enticement of acquiring quick and effortless money through bribery, without the requirement for additional effort or merit, serves as a potent motivator for those willing to compromise their integrity.

Lastly, in environments where oversight and accountability mechanisms are weak, individuals may perceive a diminished risk of detection or facing consequences for accepting bribes. This perceived lack of accountability can embolden individuals to engage in corrupt practices for financial gain. It is crucial to acknowledge that these practices undermine the principles of justice, fairness, and the rule of law, eroding public trust in the legal system [8].

III. In your opinion, how does bribery in case closures impact the police force?

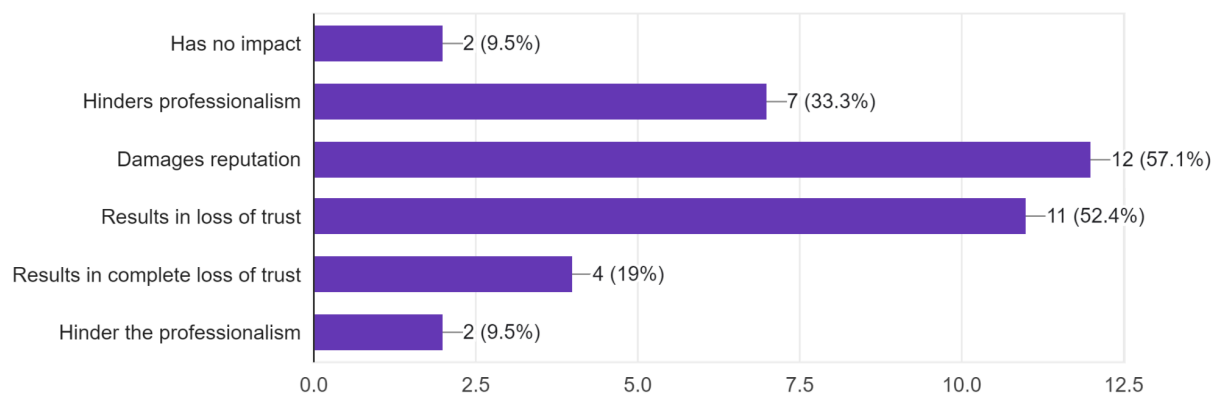


Chart 7: Impacts of Bribery in Case Closure towards the Police Force

A total of 57.1%, or 12 individuals out of the total of 21, have concurred that bribery in case closures impacts the reputation of the police force, causing damage. Cases closed through bribery contribute to increased scepticism among the public. Citizens may become sceptical about the motives and actions of law enforcement officers, suspecting corruption even in legitimate activities. Bribery undermines the professionalism of the police force, which is built on ethical conduct, adherence to the law, and commitment to justice. The involvement of bribery tarnishes this professionalism, leading to a decline in the credibility of the police force.

Furthermore, the second-highest percentage in the chart, showing that 52.4% or 11 individuals out of the total of 21, have concerns that this could result in the loss of trust, is also one of the essential impacts on the police force. Bribery undermines the trust that the public places in the police force. When citizens perceive that cases are being closed through corrupt means, faith in the fairness and integrity of law enforcement diminishes [9].

IV. Do you believe that taking steps to strengthen oversight and integrity measures could significantly reduce the occurrence of bribery in closing legal cases?

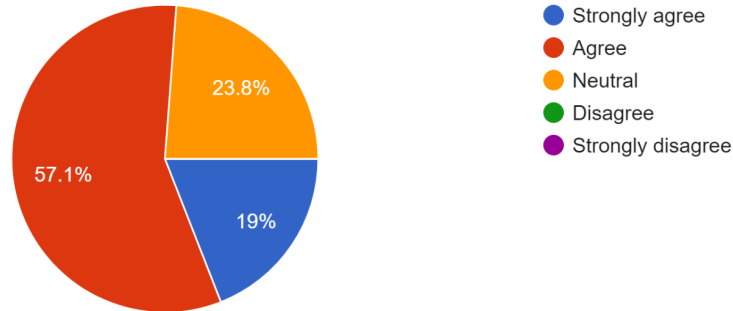


Chart 8: Importance of Strengthening Oversight and Integrity Measures

A total of 57.1%, or 12 individuals out of the total of 21, still believe that there is potential to take steps to strengthen oversight and integrity measures, which could significantly reduce the occurrence of bribery in closing legal cases. The majority of the respondents believe that they can address this issue promptly. However, the question remains: How can this be achieved? Several actions can be taken to enhance education and awareness.

Firstly, providing comprehensive training and education programs for legal professionals, judges, and law enforcement officers on ethics, anti-corruption measures, and the importance of upholding the rule of law is crucial. This initiative can foster a culture of integrity within the legal community.

Secondly, it is also important to conduct regular integrity assessments and audits of individuals involved in the legal process. This proactive approach can help identify vulnerabilities and areas where additional safeguards may be necessary. By implementing these measures, it is expected to create a more resilient and accountable legal environment, ultimately reducing the occurrence of bribery and promoting the principles of justice, fairness, and the rule of law [10].

V. In your view, what would be the most effective measures to prevent and detect bribery in the process of closing legal cases?

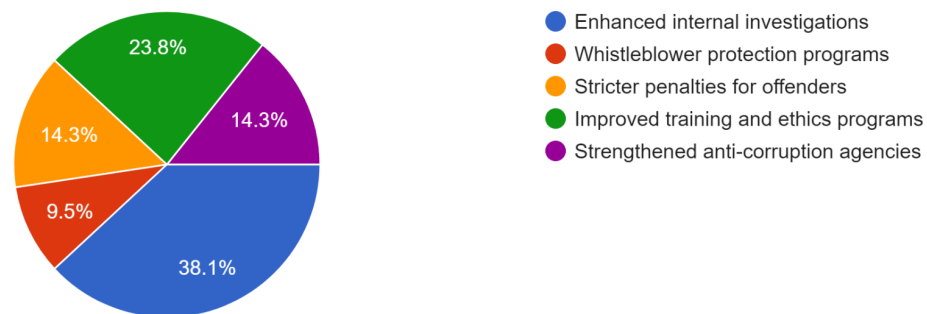


Chart 9: Measures to Reduce Bribery in Case Closure

A total of 38.1%, or 8 individuals out of the total of 21, have concurred that enhancing the internal is the most effective measure to prevent and detect bribery in the process of closing legal cases. Internal controls form the first line of defence against corrupt practices within law enforcement agencies and judicial systems. Here are key reasons why enhancing internal controls is crucial. Strengthening internal controls promotes transparency and accountability. Clear procedures and oversight mechanisms ensure that every step in the case-closure process is accountable and can be scrutinised for integrity. In addition to that, it is crucial to implement other measures for the prevention and detection of legal case closures. Whistleblower protection programs can provide early detection of bribery or corrupt activities. Stricter penalties for offenders can be an effective deterrent and contribute to preventing and detecting bribery in the process of closing legal cases. Improved training and ethic programs help cultivate a culture of integrity within legal institutions. Last but not least, strengthening anti corruption agencies ensures that professionals with specific skills are dedicated to combating bribery [11].

VI. Can you share any personal experiences or opinions regarding instances of bribery in the process of closing legal cases?

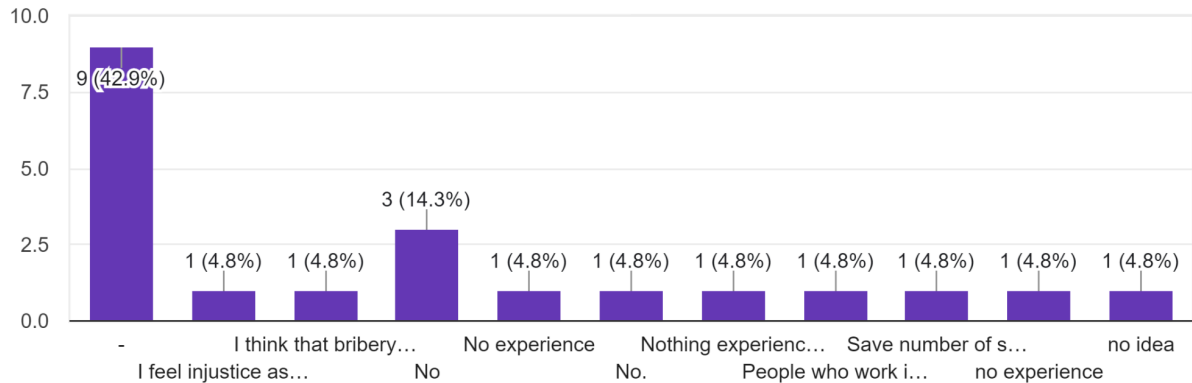


Chart 10: Respondents' Personal Experience and Opinions on Bribery in Case Closure

"I believe that bribery in the process of closing legal cases is currently prevalent worldwide. The involvement of bribery poses a risk of miscarriage of justice. Therefore, it is imperative that individuals with authority ensure fairness to achieve an equitable outcome." This statement was shared by one of the respondents. It underscores the importance of individuals in the position of authority taking decisive actions to ensure fairness. By emphasising the need for those with authority to uphold principles of fairness, the statement advocates for an equitable outcome in legal cases.

"I perceive an injustice in the possibility that bribery could lead to unfair outcomes, allowing guilty parties to go unpunished while innocent individuals may face wrongful convictions." This statement was also shared by one of the respondents. In essence, the statement conveys the speaker's perception that bribery, when involved in closing a legal case, introduces a significant risk of distorting the legal process and, consequently, may result in unjust and inequitable outcomes where the guilty go unpunished and the innocent may be wrongly convicted.

"Individuals working in law enforcement who accept bribes or engage in corruption should receive more severe punishments because they have violated the trust of their victims." This statement was also shared by one of the respondents. In conclusion, advocating for more stringent penalties for individuals in law enforcement engaged in bribery or corruption is rooted in the principles of accountability, justice, and the preservation of public trust in the legal system [12].

6.0 ABBREVIATIONS AND SUGGESTIONS

6.1 ABBREVIATIONS

Nowadays, a country survey reveals that 71% of Malaysians still view government corruption as a significant problem, with 13% reporting bribery in public services. Malaysia ranks 61st out of 180 countries in the Corruption Perceptions Index, emphasising the persistent need to address corruption. By utilizing qualitative methods, the study analysed corruption cases through online sources and conducted a Google Forms survey among UTM students, focusing on demographics and corruption perceptions. From the results found, most of them agree that bribery really had played a role in expediting the closure of a case nowadays especially for those minor punishable offences which reflect the unfair treatment under the Malaysian law. Most of the bribery happened in the form of financial gain which constitutes the primary motivation for accepting bribes to conclude a case. One of the main effects will be causing the reputation of Malaysian police to decline and even be notorious to other countries as the police did not use proper action to solve a particular case. Therefore, the Malaysian Government should take immediate actions as there is still potential for the country to take steps to strengthen oversight and integrity which could significantly reduce the occurrence of bribery in closing legal cases such as enhancing the internal investigations especially in the police department. All in all, this study underscores the significance of addressing corruption in Malaysia, emphasising legal frameworks, public awareness, and stringent penalties. It highlights the impact of corruption on societal trust and justice, urging continued efforts to promote transparency and accountability.

6.2 SUGGESTIONS

There are few suggestions for preventing bribery and corruption in the workplace of the country. First and foremost, the related department should implement an anti-bribery and anti-corruption policy that establishes the rules. For example, under UK law, it's illegal to offer, promise, give, request, agree, receive or accept bribes. This should be clearly stated within policy along with the consequences of being caught partaking in bribery [13]. Secondly, the high committees of the company need to complement ABAC policies with a series of activities that promote ethical behaviours in the workplace. Everyone in the organisation from the board of directors and business owners to the compliance team must make it clear that bribery and corruption will not be tolerated. This can be achieved by conducting presentations, sending email reminders and performing other awareness campaigns. Thirdly, ABAC laws must also be applied to an organisation's third parties, including agents, intermediaries, consultants and associates. This is because any business that acts on an organisation's behalf is found guilty of corruption or bribery, the high committees can be held liable. Hence, third party checking is essential for an organisation to understand whether they have appropriate credentials and are approved at senior management level or not. Fourthly, everyone in an organisation should undergo regular anti-bribery training. Regular training ensures that staff understand their legal requirements and their employer's responsibilities, keeping the risks related to bribery at the forefront of their minds. Last but not least, everyone in an organisation should be aware of the signs of bribery and know the difference between bribes and gifts at all times. Under UK law, bribery doesn't only include favours that are performed in exchange for money. It can include any advantage that's offered in return for a favourable action or decision [13].

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